WHAT DID “YES” MEAN?

1. WHAT TRIBAL LEADERS WERE TOLD

Diabetes research

The project was described to the Tribal Council again and again as a study of diabetes.

2. WHAT THE WRITTEN FORM SAID

“…to study the causes of behavioral/medical disorders.”

The consent form signed by some of the early donors.

3. WHAT LATER DONORS HEARD

Diabetes research

From 1991 to 1994 some blood was taken with spoken, not written, consent, explained as diabetes research.

✂ IN COURT, BOTH SIDES QUOTED THE SAME YEARS

THE TRIBE’S CLAIM, AS SUMMARISED IN THE BRIEF

In 1989, ASU Professors Martin and Markow designed a research project to study diabetes among the Havasupai people (the “Diabetes Project”). (*Id.*, ¶ 27.) Martin and Markow discussed using Havasupai blood samples to study schizophrenia, but neither the Tribe nor its people were informed that blood samples would be used for any purpose other than the diabetes study. (*Id.*, ¶¶ 29, 73.)[3]

THE RESEARCHER’S ANSWER: THE SCRIPT DONORS WERE READ

[3] While the issues on appeal do not involve the merits of the Tribe’s claim or the truth of its allegations, it is noteworthy that this very basic part of the Plaintiffs’ claims does not go unimpeached. In Motions for Summary Judgment against both the Tribe and Tilousi, Dr. Markow testified by Declaration that study participants were informed that the research had a wider purpose: they were read a script that included the following statement:

> We are conducting research to try to identify factors that cause some of the health problems experienced by the Havasupai and other Native American peoples. *Many of these diseases, such as diabetes, schizophrenia, depression,* are complicated and so we try to look at as many factors as possible. There may be causes that are passed down in families through genes and there may be causes also from different lifestyles and from the environment. Risk factors for many diseases that occur in families can sometimes be identified by tests on genetic material from the blood.

What did “yes” mean? (consent panel)

1990–2007 · Cards made for this exhibition · Court record: Joint Answering Brief, Havasupai Tribe v. Arizona Board of Regents, Arizona Court of Appeals, No. 1 CA-CV 07-0454, pp. 3–4 · Reproduction

Three versions of one permission. Below them, the two sides in court: the Tribe said it was told only about diabetes; Dr Markow said donors were read a script naming ‘diabetes, schizophrenia, depression’. No court ruled on which was true.